

Amendment No. 1 to HB2364

White
Signature of Sponsor

AMEND Senate Bill No. 2599*

House Bill No. 2364

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 49-6-2704, is amended by deleting the section and substituting instead the following:

(a) An LEA that receives, from a threat assessment team or any other source, information regarding significantly disruptive behavior or a threat of violence directed toward, or occurring on the grounds of, a public school in the LEA, and that reports the behavior or threat to a state or local law enforcement agency, shall notify the parents and guardians of students enrolled in the public school of the behavior or threat, but shall only report a threat of violence if the LEA has determined that the threat is credible following a threat assessment conducted pursuant to a policy of the local board of education or a threat assessment protocol approved by the department of education.

(b) The LEA shall notify parents and guardians within forty-eight (48) hours of the LEA reporting significantly disruptive behavior or a threat of violence to a state or local law enforcement agency; provided, that for a threat of violence reported to a state or local enforcement agency, the LEA shall only notify parents and guardians pursuant to this subsection (b) if the LEA has determined the threat of violence to be credible. Parental notification made pursuant to this subsection (b) may be made using existing communication methods for providing information to parents and guardians.

(c) For purposes of this section:

(1) A report made to a school resource officer, as defined in § 49-6-4202, or an off-duty law enforcement officer who is serving as an armed school security

officer pursuant to § 49-6-809, is not a report to a state or local law enforcement agency. The involvement of a school resource officer or an armed school security officer, or any consultation by a school resource officer, armed school security officer, or any other administrative staff or school personnel with a state or local law enforcement agency or the department of safety for purposes of assessing, investigating, or requesting assistance with significantly disruptive behavior or a threat of violence does not, on its own, constitute a determination by the LEA, if applicable, that a threat of violence is credible for purposes of subsection (a); and

(2) An LEA shall determine a threat of violence to be credible if the person who communicated the threat of violence has the intent and apparent capability to carry out the targeted act of violence.

(d) Each local board of education shall report at each quarterly meeting:

(1) The total number of any threats of violence or significantly disruptive behavior directed toward, or occurring on the grounds of, a public school requiring notice to parents and guardians in accordance with subsection (b) for the respective quarter; and

(2) The total number of any threats of violence or significantly disruptive behavior directed toward, or occurring on the grounds of, a public school requiring notice to parents and guardians in accordance with subsection (b) for the year to date.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.